

09:00 AM

25-CIV-08725 TREP 2121 ECR LLC VS. BRAIN TECHNOLOGIES, INC.
LINE 7

TREP 2121 ECR LLC
BRAIN TECHNOLOGIES, INC.

ANTHONY BUCHIGNANI
CRAIG A. HANSEN

DEFENDANT BRAIN TECHNOLOGIES, INC.'S MOTION TO SET ASIDE ENTRY OF
DEFAULT

TENTATIVE RULING:

Initially, the Court notes that Defendant has not provided the correct address for the hearing. Department 20 is located at the Northern Branch, Courtroom L, 1050 Mission Road, South San Francisco, CA 94080. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice “must specify” the location of the hearing].)

The Court further notes that the Notice of Motion and Motion, and the Memorandum of Points and Authorities in Support of the Motion, have not been signed. Assuming that this failure is inadvertent, Defendant is directed to file signed versions of these papers before the hearing. Plaintiff does not raise this issue in its opposition and has thus waived any objection on this basis. Furthermore, the Declaration of Samuel Lee was signed and filed, as the Vice President of Operations of Brain Technologies, Inc.

The Motion to Set Aside Entry of Default (the “Motion”) brought by Defendant Brain Technologies, Inc., is GRANTED.

Plaintiff’s Request for Judicial Notice is GRANTED. (Code Civ. Proc., § 452, subds. (c) & (h), & § 453.) However, judicial notice is limited to the existence and facial contents of the document shown in Exhibit RJN1, which was filed with the Secretary of State (Defendant’s RJN, Supp. Hadjian Decl., ¶ 2, & Exh. RJN1). (*See Yvanova v. New Century Mortg. Corp.* (2016) 62 Cal.4th 919.)

Background

Per the Complaint, Plaintiff owns realty located at 2121 S. El Camino Real, San Mateo, California 94403 (the “Building”). Plaintiff’s predecessor leased Suite 900 of the Building (the “Premises”) to an entity that was the predecessor of its tenant pursuant to a “Master Lease,” which entity in turn sublet the Premises to Defendant under a “Sublease.” After the Sublease expired on November 29, 2024, and the Master Lease expired the following day, Defendant continued in possession of the Premises as an unauthorized holdover under both leases. After

Defendant failed to pay the holder rent through September 2025, Plaintiff served on Defendant a Notice of Belief of Abandonment, providing *inter alia* that the Premises would be deemed abandoned as of October 6, 2025, unless Defendant were to provide written notice. Through the date of filing, Defendant had not paid the full amount owed after an alleged ten months of holdover.

Plaintiff requested and the Clerk entered the default of Defendant on January 6, 2026 (the “Default”). Plaintiff also sought a default judgment by the court, which the court denied without prejudice for insufficiencies of the J. Sweeney Declaration, including that the declaration failed to establish personal knowledge that Defendant actually occupied the Premises for each month alleged, and failed to explain why the notice of abandonment had not been served earlier. (Judgment, filed on March 30, 2026.)

The Motion Is Granted.

Defendant asserts that service was defective (Code Civ. Proc., §§ 415.20 & 416.10, subds. (a)), the court may set aside the Default because it lacks jurisdiction over Defendant (*id.*, § 473, subd. (d)), and the Default resulted from Defendant’s mistake, inadvertence, surprise, or (excusable) neglect (*id.*, § 473, subd. (b)). Defendant further asserts that the Motion is timely.

This Motion turns on whether service upon the receptionist at Defendant’s usual mailing address constitutes substituted service upon its agent for service of process pursuant to Code of Civil Procedure section 415.20, subdivision (b). It does not, the Proof of Service is invalid.

In pertinent part, the governing statutes provide that: “A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods: [¶] To the person designated as agent for service of process” (Code Civ. Proc., § 416.10, subd. (a)); and:

If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served ..., a summons may be served by leaving a copy of the summons and complaint at *the person’s* dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of *their* office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.

(Code Civ. Proc., § 415.20 subd. (b) (emphasis added).)

Defendant asserts that Plaintiff’s Proof of Service (“PoS”) indicates that it attempted to serve Defendant’s agent for service of process, but the Declaration of Deanna Goutzos, the person

served, shows that the address set forth in the PoS is neither her office nor her usual mailing address. (Goutzos Decl., ¶¶ 5-6.) Thus, Code of Civil Procedure section 415.20 has been violated and the court lacked jurisdiction over Defendant.

Plaintiff claims that:

Defendant's own Secretary of State filing listed its business address as the address of its agent for service of process. Plaintiff was entitled to rely on Defendant's own publicly filed corporate records in identifying Ms. Goutzos as Defendant's agent for service of process, and serving her at Defendant's business address.

(Motion, 10:2-5.) However, the address shown in the Secretary of State's records is that of the Premises, not the WeWork address at which service was attempted. (Defendant's RJN, Supp. Hadjian Decl., ¶ 2, & p.5, in Exh. RJN1.)

Defendant argues that as the receptionist for WeWork, Defendant's shared office space, Ms. Doe was not "the person who is apparently in charge" of Defendant's office. (Code Civ. Proc., § 415.20, subd. (a).) In any case, the statute requires that the agent be served at the agent's dwelling house, usual place of abode, usual place of business, or usual mailing address. (*Id.*, § 415.20, subd. (b).)

The Motion is also timely. (*Manson, Iver & York v. Black* 176 Cal.App.4th 36, 42 ("A judgment that is void on its face may be set aside at any time.").)

The Court is mindful that the statutes for service of process must be adhered to strictly, and further, that as a matter of public policy, disposition of cases on their merits is strongly favored. The Court is concerned that Defendant may have been evasive, allegedly disappearing, and by failing to maintain a current filing with the Secretary of State as to its agent for service of process and her mailing address, even though the agent listed had been unavailable since April 2025. (Goutzos Decl., ¶¶ 2-4.) Defendant had information about how it should be served that Plaintiff lacked, despite the Secretary of State's records. Plaintiff attempted to effect service on Defendant's agent for service of process filed with the Secretary of State at Defendant's business address filed with the Secretary of State. When the address was found to be incorrect, Plaintiff attempted to effect service on Defendant's agent for service of process at Defendant's updated business address as determined through Plaintiff's further investigation, by leaving a copy of the papers with "the person who is apparently in charge" of Defendant's "usual mailing address," and then (Code Civ. Proc., § 415.20, subd. (a).) However, the statute directs Defendant to serve the agent at the agent's address, not Defendant's address.

Plaintiff's showing also raises concerns, including its present failure to answer the Court's questions set forth in the Denied Judgment filed on March 30, 2026, though resubmission was held due to this motion to set aside. However, these concerns do not affect the result.

The Court declines to award the requested attorney's fees and costs to Plaintiff for bringing the Application, obtaining the Default, and opposing the Motion.

The Motion to Set Aside Entry of Default is GRANTED, and the January 6, 2026 filed default is set aside. As Defendant has now generally appeared in this case, and Defendant has in the Reply Declaration of Wing C. Dam supplied its proposed Answer, Defendant is to file said Answer within ten days of the date of this hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

26-CLJ-00261 JPMORGAN CHASE BANK, N.A. VS. CANDY FILIPPINI
LINE 8

JPMORGAN CHASE BANK, N.A.
CANDY FILIPPINI

TIANHE BAI
SELF-REPRESENTED

Notice of Motion and Motion for Relief From Default

DEFENDANT CANDY FILIPPINI'S MOTION TO SET ASIDE AND VACATE DEFAULT
JUDGMENT AND ENTER ANOTHER AND DIFFERENT JUDGMENT

TENTATIVE RULING:

Defendant Candy Filippini's Motion to Set Aside and Vacate Default Judgment and Enter
Another and Different Judgment is DENIED.

Default Judgment in this matter was entered on February 26, 2026. Plaintiff filed the current
motion to set aside, on April 8, 2026, however it attaches no valid Proof of Service. Instead,
Plaintiff had filed a purported Proof of Service-Civil form on March 23, 2026, which claims that
service occurred on March 15, 2026. Clearly that Proof of Service-Civil is invalid, one cannot
serve a motion before it is even filed and before a date is scheduled for said motion.

Separately, the motion is also procedurally deficient. This matter is assigned to the Honorable
Michael L. Mau, Department 20, which is now located at 1050 Mission Road, South San
Francisco, CA 94080 in Courtroom L. (*See* Cal. Rules of Court, Rule 3.1110 [the required
Notice "must specify" the location of the hearing].) The April 8, 2026 Motion instead specifies it
would be heard in Dept. 20; [Courtroom] G, which is incorrect.

Due to these procedural defects, the motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to
all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that
the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court by Minute Order with
the Court waiving any Order after hearing.
